

Chetendra Singh v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 18 September 2018 · WRIT - C No. 31617 of 2018 · **Writ disposed of; billing dispute relegated to Executive Engineer under clause 6.5.**

HEADNOTE

A writ challenging an electricity demand notice is disposed of on the footing that a dispute of electricity dues is to be raised before the Executive Engineer under Paragraph 6.5 of the Electricity Supply Code, 2005. If the consumer files such an application within a week, the Executive Engineer shall consider and decide it in accordance with law, as far as possible within one month of presentation of a certified copy of the order.

FACTUAL SUMMARY

Chetendra Singh challenged a demand notice dated 30 March 2017 for Rs. 1,40,282 towards electricity dues. He claimed he had been paying bills regularly and had even paid excess amounts, yet the huge demand continued to be pressed. The respondents were the State of Uttar Pradesh and the distribution licensee. The writ came up before a Division Bench of the Allahabad High Court.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing objection to Executive Engineer

HOLDING

A dispute as to electricity dues is to be raised before the Executive Engineer under Paragraph 6.5 of the Electricity Supply Code, 2005. The writ is disposed of with a direction that if the consumer files such an application within a week, the Executive Engineer shall consider and decide it in accordance with law, as far as possible within one month of presentation of a certified copy of the order. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ challenging an electricity demand notice is disposed of on the footing that a dispute of electricity dues is to be raised before the Executive Engineer under Paragraph 6.5 of the Electricity Supply Code, 2005.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DEMAND NOTICE DATED 30.3.2017 FOR RS. 1,40,282

Left to the Executive Engineer under clause 6.5. ¶ 1